

24STCV28269 24STCV28269

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Case Number: 24STCV28269 Hearing Date: July 7, 2026 Dept: 617

Dept.

617

Date:

7-7-26

Case

#: 24STCV28269

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, David C. Smith,

RESPONDING

PARTY: Plaintiff, Hamid Mossanen, in pro per

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

Motion

to Strike

SUMMARY OF ACTION

Plaintiff

Hamid Mossanen retained Defendant David C. Smith to defend him in an unlawful detainer action and pursue claims against his landlord. Plaintiff alleges that Defendant misrepresented his ability and intentions to pursue Plaintiff's affirmative claims and that Plaintiff ultimately lost his right to assert these claims due to the statute of limitations. On June 24, 2025, Plaintiff filed a First Amended Complaint for: (1) Professional Negligence; (2) Breach of Fiduciary Duty; and (3) Intentional Misrepresentation.

RULING

Demurrer: Overruled.

Defendant demurs to the second and third causes of action in Plaintiff's First Amended Complaint for breach of fiduciary duty and intentional misrepresentation.[1]

He argues that the breach of fiduciary duty claim is time-barred and Plaintiff fails to plead his fraud claim with requisite particularity. Plaintiff opposes the demurrer, contending that Defendant is equitably estopped from asserting the statute of limitations as a defense to his breach of fiduciary duty cause of action because of representations concerning a tolling agreement between the parties. He further argues that he sufficiently pleads his fraud claim with specificity. Defendant's demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds*

(2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

Second Cause of Action: Breach of Fiduciary Duty

Defendant argues that Plaintiff's breach of fiduciary duty cause of action is time-barred by the statute of limitations. "An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first." (Code Civ. Proc., § 340.6, subd. (a).) He contends that Plaintiff discovered or should have discovered the alleged malpractice (i.e., the adverse result in the unlawful detainer case and failure to pursue affirmative claims) when Defendant terminated representation on November 29, 2022. [FAC ¶ 3.] Thus, Plaintiff's filing of the action in October 2024 would be untimely.

Defendant is equitably estopped from raising the statute of limitations as a defense. "Equitable estoppel requires that: (1) the party to be estopped was aware of the operative facts and either intended that its act or omission be acted upon, or acted in such a way that the party asserting estoppel rightfully believed it was intended; and (2) the party asserting estoppel was unaware of the facts and relied on the other party's conduct to its detriment." (Gaines v. Fidelity Nat. Title Ins. Co. (2016) 62 Cal.4th 1081, 1097.) Plaintiff sufficiently alleges estoppel. He claims that before the limitations period ran, the parties agreed on November 17, 2023 to toll the limitations period until August 1, 2024. [FAC ¶ 3.] On July 30, 2024, the parties agreed to extend the tolling agreement to November 1, 2024. [Ibid.] Plaintiff alleges he reasonably relied on this agreement in refraining from filing suit until October 2024. [Id. ¶ 4.] That Defendant did not sign the agreement is immaterial under these circumstances. [Ibid.]

Plaintiff therefore sufficiently alleges facts showing that Defendant is estopped from raising the statute of limitations as a defense and the demurrer is overruled.

Third Cause of Action:

Intentional Misrepresentation

Defendant argues that Plaintiff's intentional misrepresentation claim fails because he does not state the elements of his claim with requisite particularity.

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Fraud must be pled with specificity; conclusory allegations are insufficient. (*Id.* at p. 645.) This requires "pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Ibid.*)

Plaintiff

has sufficiently alleged a fraud claim. He alleges that a few days before entering into the March 26, 2022 retainer agreement, Defendant orally and falsely represented that "he had substantial experience representing tenants in unlawful detainer disputes" and he would file Plaintiff's affirmative claims, even though such claims could not be brought in an unlawful detainer action. [FAC ¶ 31.] He claims Defendant knew these representations were false when made and were tendered with the intent to induce Plaintiff to enter into the retainer agreement and to bill Plaintiff "for as much as he could." [*Id.* ¶¶ 31-32.] Plaintiff relied on these representations by retaining Defendant for defense of the unlawful detainer action and to pursue the affirmative claims. [*Id.* ¶ 33.] Plaintiff was damaged by losing the case and his affirmative defenses and paying "an excessive amount" to Defendant for his work. [*Id.* ¶¶ 23, 34.] These facts sufficiently allege the elements of Plaintiff's fraud claim and the circumstances and details of the alleged misrepresentations. The Court declines to consider Defendant's newly raised argument on reply that Plaintiff's claim is time-barred because it is a negligent misrepresentation claim masquerading as a fraud claim. [Reply at pp. 4-6.] (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-28.) Defendant's demurrer to this claim is therefore

overruled.

Motion to Strike: Denied.

Defendant

moves to strike certain paragraphs in Plaintiff's First Amended Complaint alleging emotional distress and punitive damages. He further seeks to strike Plaintiff's prayer for punitive damages for his breach of fiduciary duty and fraud claims. Defendant argues that Plaintiff's legal malpractice suit cannot form the basis for recovery of emotional distress damages and Plaintiff fails to sufficiently plead his punitive damages claim. Plaintiff opposes the motion, maintaining that his claims support emotional distress recovery and his entitlement to punitive damages is adequately pled. Defendant's motion is denied.

Plaintiff's

breach of fiduciary duty cause of action supports his claim for emotional distress damages. Emotional distress damages may be recoverable "if directly caused by the attorney's conduct in breach of her fiduciary duties." (Stanley v. Richmond (1995) 35 Cal.App.4th 1070, 1097.) Furthermore, emotional distress recovery is allowed when the defendant's conduct is intentional. (Branch v. Homefed Bank (1992) 6 Cal.App.4th 793, 800.) Here, Plaintiff alleges emotional distress arising from his attorney's misrepresentations and claims such misrepresentations were made in pursuit of the attorney's own financial interests to the detriment of Plaintiff. [FAC ¶¶ 2, 26-28.] Plaintiff has thus alleged a basis for emotional distress recovery.

Plaintiff

has also sufficiently pled his claim for punitive damages. To support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) "Fraud" is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) "Pleading in the language of the statute is not objectionable when sufficient facts are alleged to support the allegation." (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6-7.) As explained in the Court's ruling on Defendant's demurrer, Plaintiff has sufficiently pled a fraud claim, and the same alleged misrepresentations

constitute the operative misconduct underlying the breach of fiduciary duty claim. Plaintiff has therefore pled entitlement to punitive damages for both causes of action. Defendant's motion to strike is therefore denied.

Defendant

to answer the operative complaint within 10 days.

Defendant

to give notice.

[1] On June

29, 2026, Defendant withdrew his demurrer to the first cause of action for professional negligence.